FAIR ACCESS IN PUBLIC PROCUREMENT

NUMBER: 107-009-0030

EFFECTIVE DATE: July 27, 2026

DIVISION: Enterprise Goods & Services

POLICY OWNER: State Procurement Services

INTERNAL OR STATEWIDE: Statewide

LAST REVIEWED DATE: July 27, 2026

SUPERSEDES: Policy 107-009-0030 and Procedure 107-009-0030_PR (Business Equity, Inclusion and Engagement in Public Procurement, 2020)

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REFERENCE/AUTHORITY:

- ORS 184.340, 200.005-200.045, 200.090, 279A, 279B
- House Bill 2337 (2025)/ Oregon Laws 2025, Chapter 483
- OAR 125-246-0200,125-246-0230, 125-247-0200, 125-247-0265, 125-247-0270
- Executive Order 22-15

APPROVED SIGNATURE:

Betsy A. Imholt

Betsy Imholt, DAS Director

Statement

It is the policy of Oregon state government to ensure fair access and opportunity for all Oregon businesses by promoting Equity, Inclusion, and Engagement in Procurement activities. This policy provides the framework and standards State Agencies must follow to promote fair access throughout the Procurement process and to support consistent, transparent, and equitable Procurement practices.

Applicability

This policy applies to all State Agencies unless an agency has its own statutory Procurement authority under ORS 279A.050 or another law. All State Agencies and units of Local Government are encouraged to adopt this policy as appropriate and allowed by law.

This policy supplements existing public Procurement requirements.

Definitions

Capitalized terms are defined in ORS 279A.010 unless otherwise defined below:

Certification Office for Business Inclusion and Diversity (COBID): The office in Business Oregon that certifies eligible businesses interested in contracting with government entities.

COBID Certified Firms: Businesses certified by COBID and listed in the COBID Certified Vendor Directory.

COBID Certified Vendor Directory: The official, online listing of COBID Certified Firms.

Engagement: Strategies, activities, and partnerships designed to support and promote economic opportunities by providing businesses with tools, resources, and information to participate in public Procurement.

Equity: Ensuring fair treatment, equal opportunity, and access to information and resources for all Oregon businesses.

Governor's Policy Advisor: The Policy Advisor for Economic and Business Equity, appointed by the Governor.

Inclusion: Actively inviting participation from Oregon businesses, with a focus on COBID Certified Firms.

Oregon Small Business Enterprise (OSBE): A type of COBID Certified Firm, specifically designated as an Oregon Small Business Enterprise.

Supplier: A general term for a vendor, provider, Contractor, or Consultant.

Targets and Goals

To address the inequities shown in Oregon's [2023 Disparity Study], State Agencies must strive to allocate at least 11% of their non-Price Agreement Public Contract spend to COBID Certified Firms.

General Information

Expectations

1. State Agencies that use a Procurement system other than the state's e-Procurement system must collect race and gender data for its Suppliers, including prime and subcontractors, as outlined in Executive Order 22-15.
2. The state's e-Procurement system will collect race and gender data from all Suppliers, including prime and subcontractors, for Procurements stored in the system. This data will rely on voluntary self-identification by Suppliers.
3. State Agencies are responsible for determining whether Suppliers, Goods, and Services meet their needs. This determination may include schedule and budget constraints.
4. DAS will provide training and resources to help State Agencies implement this policy.
5. DAS will analyze data and publish dashboards and reports on state Procurements, including usage of COBID Certified Firms, to the extent data is available.

Business Engagement

When possible, seek to expand Procurement opportunities for COBID Certified Firms by engaging in activities such as:

1. Hosting or participating in open houses, trade shows, and local and regional outreach events;
2. Attending or supporting events coordinated by the Governor's Office;
3. Forecasting and publishing planned Procurement opportunities well in advance of the Procurement;
4. Advertising Procurement opportunities in publications or through alternative channels that target COBID Certified Firms;
5. Contacting COBID for assistance finding or reaching COBID Certified Firms and selecting appropriate NIGP codes;
6. Providing information and training to help Suppliers prepare for Public Contracts;
7. Exploring outreach strategies to connect with diverse Suppliers;
8. Assisting COBID Certified Firms with using the state's e-Procurement system;
9. Using the contract preferences available under ORS 279A; and
10. Offering post-award debriefs as a best practice to support future participation.

Notify the Governor's Policy Advisor

Posting solicitations and Public Contracts in the state's e-Procurement system satisfies the notification requirements in ORS 200.035. State Agencies that use other Procurement systems must establish their own processes to comply with ORS 200.035.

Promote Fair Access in Solicitations and Public Contracts

State Agencies must ensure solicitation and Public Contract requirements promote fair access. To encourage competition and access, consider the following practices:

1. Use plain language and straightforward requirements;
2. Limit addenda and attachments to those required to conduct the Procurement;
3. Align risk with insurance and use the Risk Assessment Tool;
4. Conduct market research on industry standards and pricing;
5. Consider the size, scope, and location of the Procurement;
6. Set experience requirements based on actual need;
7. Allow Suppliers to determine their availability and willingness to travel; and
8. Use payment terms that support prompt pay to Suppliers.

Mandatory Solicitation Language

All solicitations must include:

1. The statement of values required by Executive Order 22-15 and available on DAS' website; and
2. Notice that an OSBE preference will be applied according to OAR 125-246-0230, as applicable.

Oregon Small Business Enterprise Preference

State Agencies must apply the OSBE preference according to OAR 125-246-0230 (Preference for Oregon Small Business Enterprises) and OAR 125-247-0200 (Buy Decision and Methods of Source Selection). This requirement applies regardless of payment method, including a SPOTS card.

1. If an OSBE can meet a need, and the State Agency awards to a Supplier that is not an OSBE, the Procurement file must include documentation to explain the award decision.
2. If no OSBE can meet the need, the Procurement file must contain evidence of the attempt to use an OSBE (e.g., screenshots of COBID Certified Vendor Directory searches, email exchanges with COBID or OSBEs, a failed solicitation, etc.). State Agencies are encouraged to contact COBID at biz.cobid@bizoregon.gov for search assistance.
3. Procurement records related to the OSBE preference must be made available for review upon request by the Governor's Policy Advisor, the Chief Procurement Officer, or COBID.

4. State Agencies must submit semi-annual OSBE Procurement activity reports to DAS, using a DAS reporting process, as follows:

Table: Reporting Due Dates

Reporting Period	Due Date
Period 1 (January – June)	August 15
Period 2 (July – December)	February 15